

20PR00482 Estate of Rick Renfro

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-09-29

Motion: Petition to Re-Open Administration

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Tentative Ruling: Estate of Rick Renfro

Case Number

20PR00482

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 09/29/2026 - 09:00

Nature of Proceedings

Petition to Re-Open Administration

Tentative Ruling

Probate Notes:

Appearances required.

It is recommended the court deny the petition.

The Order on First and Final Report of Personal Representative and Petition for Final Distribution in this case was issued on April 13, 2023, and became a final judgment. That order contained two orders that are specifically relevant to the petition before the Court:

¶14 distributed the known assets of the estate 1/3 to the surviving spouse and 1/3 to each of the two surviving children of the decedent.

¶15 contained what is known as an omnibus clause with the following language: “Any other property of the Estate acquired or discovered after this order is made, including any unused portion of the reserve for closing costs after they are accounted for (if ordered), shall be distributed as follows: Same distribution as identified in Paragraph 14, above.

Because the distribution of after-discovered and after-acquired property was already contained in the April 13, 2023, order, Probate Code section 11642 governs the procedure for distribution of the after-discovered/acquired property. That section states as follows:

Any property acquired or discovered after the court order for final distribution is made shall be distributed in the following manner:

(a) If the order disposes of the property, distribution shall be made in the manner provided in the order. The court may, in an appropriate case, require a supplemental account and make further instructions relating to the property.

(b) If the order does not dispose of the property, distribution shall be made either (1) in the manner ordered by the court on a petition for instructions or (2) under Section 12252 (administration after discharge) if the personal representative has been discharged.

(Ibid. [emphasis added].)

As a result of the above statute, the Court does not have authority to make any further orders as to administration or distribution. Even if the order did not dispose of the property, section 12252 (cited by Petitioner) does not authorize a statutory procedure within itself, as discussed in a respected treatise:

Letters may be issued after final settlement of an estate. Prob C §12252. Issuance may be justified when property is discovered after final distribution, but “reopening” an estate is resorted to only when “necessary or proper” and there is no omnibus clause (see forms 18.29–53 and 18.36–36) distributing after■discovered property.

The procedure for issuance of letters (see chap 7) should be followed in the petition to reopen the estate and for letters testamentary. The original representative has priority for appointment. If the estate is reopened because of after■discovered assets, requirements of notice, inventory and appraisal, estate taxes, and other duties must be met.

NOTE► Once a personal representative is discharged, there is no personal representative. If property is later subject to probate or a later action is required, a new petition for probate must be filed if the order does not contain an omnibus clause. Whether or not it is prudent to request discharge depends on the facts and circumstances of the estate. In some instances it is prudent to not request discharge of the personal representative because it may be useful to have an “executor on standby.” Alternatively, most personal representatives desire to be relieved of their duties if there are no other tasks for them to perform. Bonding companies want personal representatives to seek discharge to eliminate any potential liabilities.

(California Probate Workflow Manual Revised (rev. ed. Cal. CEB 2026) §20.27 [emphasis added].)

Thus, if the omnibus clause was not in the April 2023 order, the pleading paper-styled petition currently before the court would be procedurally improper. Use of Form DE-11 would be required.

While the court lacks authority to make any further orders regarding distribution, Petitioner appears to have recourse in civil court to enforce a judgment, and may even be able to accomplish the distribution of the property via contempt proceedings.

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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